

Court No. - 37

Case :- WRIT - C No. - 66846 of 2011

Petitioner :- Bidha

Respondent :- The State Of U.P. And Others

Petitioner Counsel :- Dinesh Kumar

Respondent Counsel :- C.S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble B. Amit Sthalekar,J.

Petitioner is directed to provide a copy of the writ petition on learned counsel for respondent nos.4 and 5.

As prayed put up 29.11.2011 as fresh showing the name of Sri Rajesh Tiwari as counsel for respondent.

Order Date :- 22.11.2011

Asha

Court No. - 37

Case :- WRIT - C No. - 66846 of 2011

Petitioner :- Bidha

Respondent :- The State Of U.P. And Others

Petitioner Counsel :- Dinesh Kumar

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

Sri Rajesh Tripathi, learned counsel appearing for the contesting respondents no. 4 and 5 is granted a week's further time to obtain instructions or file counter affidavit.

Put up on 7.12.2011 as a fresh case.

Order Date :- 29.11.2011

p.s.

(Ashok Pal Singh, J.)

(Vineet Saran, J.)

Court No. - 37

Case :- WRIT - C No. - 66846 of 2011

Petitioner :- Bidha

Respondent :- The State Of U.P. And Others

Petitioner Counsel :- Dinesh Kumar

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

Learned Standing Counsel has accepted notice for respondents no.1 to 3 and Sri Rajesh Tripathi for respondents no.4 and 5. They pray for and are granted a month's time to file counter affidavit. The petitioner shall have a week thereafter to file rejoinder affidavit. List immediately thereafter.

Order Date :- 7.12.2011

dps

(Ashok Pal Singh, J.)

(Vineet Saran, J.)

Court No. - 10

Case :- WRIT - C No. - 66846 of 2011

Petitioner :- Bidha

Respondent :- The State Of U.P. And Others

Counsel for Petitioner :- Dinesh Kumar

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Arun Tandon, J.

Hon'ble Harsh Kumar, J.

Sri Baleshwar Chaturvedi, learned counsel for the respondent is present.

The bill issued by the Electricity Department is not under challenge. Consequential recovery cannot be subjected to change.

We are of the opinion that if the petitioner is not satisfied with the correctness of the bill, which has been issued, he may seek remedy under Section 6.5 of the Electricity Supply Code, 2005.

The writ petition is dismissed with liberty as aforesaid.

Interim order, if any, stands discharged.

Order Date :- 10.2.2016

Ashish Pd.